

CASE RECORD: FIR 89/2024

FIRST INFORMATION REPORT (FIR No. 89/2024)

Registered at Sadar Police Station on 12th January 2024 at 14:30 hrs. Accused Name: Rajesh Kumar, aged 34 years. Offence alleged under Section 420 (Cheating) and Section 406 (Criminal Breach of Trust) of the Indian Penal Code.

STATEMENT UNDER SECTION 161 CrPC

Statement of Witness Shri Mahesh Verma recorded under Section 161 CrPC: The applicant Rajesh Kumar has been a continuous resident of House No. 45, Green Park, New Delhi for the past 12 years and has deep family ties with no prior criminal antecedents or flight risk.

STATUTORY PROVISION (Reference)

Section 437 in The Code Of Criminal Procedure, 1973: When any person accused of, or suspected of, the commission of any non-bailable offence is arrested or detained without warrant by an officer in charge of a police station or appears or is brought before a Court other than the High Court or Court of Session, he may be released on bail, but such person shall not be so released if there appear reasonable grounds for believing that he has been guilty of an offence punishable with death or imprisonment for life.

PRECEDENT (Reference)

Supreme Court of India in Satender Kumar Antil v. CBI (2022) 10 SCC 51: Personal liberty is a priceless value. The policy of the law is that bail is the rule and jail is the exception, particularly where the investigation is complete and the custodial interrogation of the accused is no longer required.